

Senate File 543

S-3093

1 Amend Senate File 543 as follows:

2 1. By striking everything after the enacting clause and  
3 inserting:

4 <Section 1. Section 43.49, subsection 1, unnumbered  
5 paragraph 1, Code 2025, is amended to read as follows:

6 On the ~~Monday~~ or Tuesday following the primary election, the  
7 board of supervisors shall meet, open, and canvass the returns  
8 from each voting precinct in the county, and make abstracts  
9 thereof, stating the following:

10 Sec. 2. Section 43.56, subsection 2, Code 2025, is amended  
11 by striking the subsection.

12 Sec. 3. Section 46.24, subsection 1, Code 2025, is amended  
13 to read as follows:

14 1. A judge of the supreme court, court of appeals, or  
15 district court including a district associate judge, full-time  
16 associate juvenile judge, or full-time associate probate judge,  
17 or a clerk of the district court must receive more affirmative  
18 than negative votes to be retained in office. When the poll  
19 is closed, the election judges shall publicly canvass the vote  
20 forthwith. The board of supervisors shall canvass the returns  
21 on the ~~Monday~~ or Tuesday after the election, and shall promptly  
22 certify the number of affirmative and negative votes on each  
23 judge or clerk to the state commissioner of elections.

24 Sec. 4. Section 50.21, subsection 1, Code 2025, is amended  
25 to read as follows:

26 1. The commissioner shall reconvene the election board of  
27 the special precinct established by [section 53.20](#) not earlier  
28 than noon on the second day following each election which  
29 is required by law to be canvassed on the ~~Monday~~ or Tuesday  
30 following the election. If the second day following such an  
31 election is a legal holiday the special precinct election board  
32 may be convened at noon on the day following the election, and  
33 if the canvass of the election is scheduled at any time earlier  
34 than the ~~Monday~~ Tuesday following the election, the special  
35 precinct election board shall be reconvened at noon on the day

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1 following the election.

2 Sec. 5. Section 50.24, subsections 1 and 4, Code 2025, are  
3 amended to read as follows:

4 1. The county board of supervisors shall meet to canvass  
5 the vote on the first ~~Monday or~~ Tuesday after the day of  
6 each election to which [this chapter](#) is applicable, unless  
7 the law authorizing the election specifies another date for  
8 the canvass. If that ~~Monday or~~ Tuesday is a public holiday,  
9 section 4.1, subsection 34, controls.

10 4. For a regular or special city election or a city runoff  
11 election, if the city is located in more than one county, the  
12 controlling commissioner for that city under [section 47.2](#) shall  
13 conduct a second canvass on the second ~~Monday or~~ Tuesday after  
14 the day of the election. However, if a recount is requested  
15 pursuant to [section 50.48](#), the controlling commissioner shall  
16 conduct the second canvass within two business days after the  
17 conclusion of the recount proceedings. Each commissioner  
18 conducting a canvass for the city pursuant to [subsection 1](#)  
19 shall transmit abstracts for the offices and public measures of  
20 that city to the controlling commissioner for that city, along  
21 with individual tallies for each write-in candidate. At the  
22 second canvass, the county board of supervisors of the county  
23 of the controlling commissioner shall canvass the abstracts  
24 received pursuant to [this subsection](#) and shall prepare a  
25 combined city abstract stating the number of votes cast in the  
26 city for each office and on each question on the ballot for  
27 the city election. The combined city abstract shall further  
28 indicate the name of each person who received votes for each  
29 office on the ballot, the number of votes each person named  
30 received for that office, and the number of votes for and  
31 against each question submitted to the voters at the election.  
32 The votes of all write-in candidates who each received less  
33 than five percent of the total votes cast in the city for  
34 an office shall be reported collectively under the heading  
35 "scattering".

1     Sec. 6. Section 50.24, subsection 5, paragraph a, Code 2025,  
2 is amended to read as follows:

3     a. For a regular or special school election, if the school  
4 district is located in more than one county, the controlling  
5 commissioner for that school district under [section 47.2](#) shall  
6 conduct a second canvass on the second ~~Monday~~ or Tuesday after  
7 the day of election. However, if a recount is requested  
8 pursuant to [section 50.48](#), the controlling commissioner shall  
9 conduct the second canvass within two business days after the  
10 conclusion of the recount proceedings. Each commissioner  
11 conducting a canvass for the school district pursuant to  
12 subsection 1 shall transmit abstracts for the offices and  
13 public measures of that school district to the controlling  
14 commissioner for that school district, along with individual  
15 tallies for each write-in candidate. At the second canvass the  
16 county board of supervisors of the controlling county shall  
17 canvass the abstracts received pursuant to [this subsection](#) and  
18 shall prepare a combined school district abstract stating the  
19 number of votes cast in the school district for each office and  
20 on each question on the ballot for the school election. The  
21 combined school district abstract shall further indicate the  
22 name of each person who received votes for each office on the  
23 ballot, the number of votes each person named received for that  
24 office, and the number of votes for and against each question  
25 submitted to the voters at the election. The votes of all  
26 write-in candidates who each received less than five percent of  
27 the total votes cast in the school district for an office shall  
28 be reported collectively under the heading "scattering".

29     Sec. 7. Section 50.48, subsection 1, paragraph a,  
30 unnumbered paragraph 1, Code 2025, is amended to read as  
31 follows:

32     ~~The~~ Except as provided in paragraph "c", the county board  
33 of canvassers shall order a recount of the votes cast for  
34 a particular office or nomination in ~~one or more specified~~  
35 each election precincts in that county precinct where a vote

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1 was cast for an office if a written request for a recount is  
2 made not later than 5:00 p.m. on the ~~third~~ day following the  
3 county board's canvass of the election in question and the  
4 abstracts prepared pursuant to section 50.24, or section 43.49  
5 in the case of a primary election, indicate that the difference  
6 between the total number of votes cast for the apparent winner  
7 and the total number of votes cast for the candidate requesting  
8 the recount is less than either one percent or fifty votes,  
9 whichever is lesser. For a city runoff election held pursuant  
10 to [section 376.9](#), the written request must be made not later  
11 than 5:00 p.m. on the day following the county board's canvass  
12 of the city runoff election. The request shall be filed with  
13 the commissioner of that county and shall be signed by either  
14 of the following:

15 Sec. 8. Section 50.48, subsection 1, Code 2025, is amended  
16 by adding the following new paragraphs:

17 NEW PARAGRAPH. c. The state commissioner of elections  
18 shall order a recount of the votes cast for the election or  
19 nomination of a candidate for a statewide elected office,  
20 member of the general assembly, or federal office in each  
21 precinct where a vote was cast for the office if a written  
22 request for a recount is made not later than 5:00 p.m. on the  
23 day following the county board's canvass of the election in  
24 question and the abstracts prepared pursuant to section 50.24,  
25 or section 43.49 in the case of a primary election, indicate  
26 that the difference between the total number of votes cast  
27 for the apparent winner and the total number of votes cast  
28 for the candidate requesting the recount is less than fifteen  
29 hundredths of one percent for the election or nomination of a  
30 candidate for a statewide elected office or federal office,  
31 or less than either one percent or fifty votes, whichever is  
32 lesser, for all other elections or nominations. Immediately  
33 upon receipt of a request for a recount pursuant to this  
34 paragraph, the state commissioner of elections shall send a  
35 copy of the request to each commissioner of a county where a

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1 ballot for the office was cast, who shall conduct a recount  
2 as provided by this section and on such date as the state  
3 commissioner of elections may direct. The state commissioner  
4 of elections shall order the start of a recount pursuant to  
5 this paragraph within seven days of receipt by the state  
6 commissioner of elections of the request for a recount. A  
7 candidate for an office filled by the electors of the entire  
8 state shall not be required to pay more than one bond for a  
9 recount.

10 NEW PARAGRAPH. *d.* Immediately upon receipt of a request  
11 for a recount for an office filled by the electors of more than  
12 one county, other than from the state commissioner of elections  
13 pursuant to paragraph "c", the commissioner shall send a copy of  
14 the request to each commissioner of a county where a ballot for  
15 the office was cast, who shall conduct a recount as provided in  
16 this section.

17 Sec. 9. Section 50.48, subsection 2, Code 2025, is amended  
18 by striking the subsection.

19 Sec. 10. Section 50.48, subsections 3 and 4, Code 2025, are  
20 amended to read as follows:

21 3. *a.* The recount shall be conducted by a board which shall  
22 consist of:

23 ~~{1} A designee of the candidate requesting the recount, who~~  
24 ~~shall be named in the written request when it is filed.~~

25 ~~{2} A designee of the apparent winning candidate, who shall~~  
26 ~~be named by that candidate at or before the time the board is~~  
27 ~~required to convene.~~

28 ~~{3} A person chosen jointly by the members designated~~  
29 ~~under subparagraphs (1) and (2) the commissioner and the~~  
30 commissioner's staff. The commissioner may assign persons  
31 employed by the commissioner to tally ballots during the  
32 election as members of the recount board. If the commissioner  
33 assigns persons employed by the commissioner to tally ballots  
34 during the election as members of the recount board to recount  
35 an election for a partisan office, the commissioner shall

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1 assign an equal number of persons from each political party.

2     ~~b. The commissioner shall convene the persons designated~~  
3 ~~under paragraph "a", subparagraphs (1) and (2), not later~~  
4 ~~than 9:00 a.m. on the seventh day following the county~~  
5 ~~board's canvass receipt of a request for the recount of the~~  
6 ~~election in question. If those two members cannot agree on~~  
7 ~~the third member by 8:00 a.m. on the ninth day following the~~  
8 ~~canvass, they shall immediately so notify the chief judge of~~  
9 ~~the judicial district in which the canvass is occurring, who~~  
10 ~~shall appoint the third member not later than 5:00 p.m. on the~~  
11 ~~eleventh day following the canvass.~~

12     c. The candidate requesting the recount and the apparent  
13 winning candidate of the office subject to the recount may  
14 select not more than five persons to observe the conduct of the  
15 recount in each county where the recount is being conducted. A  
16 candidate may replace an observer appointed by the candidate  
17 at any time.

18     4. ~~a. When all members of the recount board have been~~  
19 ~~selected convened, the board shall undertake and complete the~~  
20 ~~required recount as expeditiously as reasonably possible. The~~  
21 ~~commissioner or the commissioner's designee shall supervise the~~  
22 ~~handling of ballots to ensure that the ballots are protected~~  
23 ~~from alteration or damage. The board shall open only the~~  
24 ~~sealed ballot containers from the precincts specified to be~~  
25 ~~recounted in the request or by the recount board. The board~~  
26 ~~shall recount only the all ballots which were voted and counted~~  
27 ~~for the office in question, including any disputed ballots~~  
28 ~~returned as required in section 50.5. If automatic tabulating~~  
29 ~~equipment was used to count the ballots, the recount board~~  
30 ~~may request the commissioner to retabulate the ballots using~~  
31 ~~the automatic tabulating equipment. The same program used~~  
32 ~~for tabulating the votes on election day shall be used at the~~  
33 ~~recount unless the program is believed or known to be flawed. A~~  
34 recount shall be conducted by the use of automatic tabulating  
35 equipment, except that the state commissioner, for an election

1 for a member of the general assembly, or commissioner, for a  
2 local elective office, may direct that an election be conducted  
3 by hand due to extraordinary circumstances. The same method  
4 of conducting the recount shall be used in each precinct where  
5 the recount is conducted. The commissioner shall make all  
6 pieces of automatic tabulating equipment available for use in  
7 the recount. For purposes of this paragraph, "extraordinary  
8 circumstances" includes but is not limited to a machine failure  
9 during an initial recount, a discrepancy between the results  
10 of the initial count and the results of the initial recount,  
11 and the number of overvotes for an office exceeding the  
12 difference between the number of votes received by the apparent  
13 winning candidate for that office and the votes received by the  
14 candidate who received the second highest number of votes for  
15 that office.

16 ~~b. Any member of the recount board may at any time during~~  
17 ~~the recount proceedings extend the recount of votes cast for~~  
18 ~~the office or nomination in question to any other precinct or~~  
19 ~~precincts in the same county, or from which the returns were~~  
20 ~~reported to the commissioner responsible for conducting the~~  
21 ~~election, without the necessity of posting additional bond.~~

22 ~~c.~~ b. The ballots shall be resealed by the recount board  
23 before adjournment and shall be preserved as required by  
24 section 50.12. At the conclusion of the recount, the recount  
25 board shall make and file with the commissioner a written  
26 report of its findings, which shall be signed by at least ~~two~~  
27 two-thirds of the members of the recount board. The recount  
28 board shall complete the recount and file its report not later  
29 than the eighteenth day following the ~~county board's canvass~~  
30 commissioner's receipt of a request for the recount of the  
31 election in question.

32 Sec. 11. Section 50.48, Code 2025, is amended by adding the  
33 following new subsections:

34 NEW SUBSECTION. 9. a. The recount board shall comply with  
35 all guidance issued by the state commissioner of elections

1 pursuant to section 47.1 during the conduct of a recount. The  
2 state commissioner may halt a recount in a county, take custody  
3 of all ballots and equipment used in the recount, and appoint  
4 staff to conduct a recount if the state commissioner believes  
5 that a recount is not being conducted as required by law.

6     **b.** If the state commissioner believes that a commissioner  
7 is purposefully conducting a recount in violation of law,  
8 the state commissioner may impose a civil penalty on the  
9 commissioner not to exceed twenty-five thousand dollars, to be  
10 deposited in the general fund of the state.

11     NEW SUBSECTION. 10. Before a recount board has issued its  
12 final report, the candidate or person who requested the recount  
13 may reach an agreement with the apparent winner to accept the  
14 results of the original canvass by submitting the agreement in  
15 writing to each recount board that is conducting the recount.  
16 Upon receipt of the agreement, the recount boards shall cease  
17 their work and report to each county commissioner in a county  
18 where the recount is being conducted that the results of the  
19 original canvass are the official results.

20     Sec. 12. Section 50.49, subsection 1, Code 2025, is amended  
21 to read as follows:

22     1. A recount for any public measure shall be ordered by the  
23 board of canvassers if a petition requesting a recount is filed  
24 with the state commissioner for a public measure voted on by  
25 the electors of the entire state, or the county commissioner  
26 for all other public measures, not later than three days after  
27 the completion of the canvass of votes for the election at  
28 which the question appeared on the ballot and the abstracts  
29 prepared pursuant to section 50.24 indicate that the difference  
30 between the affirmative and negative votes cast on the public  
31 measure is less than fifteen hundredths of one percent for a  
32 public measure voted on by the electors of the entire state,  
33 or less than either one percent or fifty votes, whichever is  
34 lesser, for all other public measures. The petition shall be  
35 signed by the greater of not less than ten eligible electors or



1 a number of eligible electors equaling one percent of the total  
2 number of votes cast upon the public measure. Each petitioner  
3 must be a person who was entitled to vote on the public measure  
4 in question or would have been so entitled if registered to  
5 vote.

6 Sec. 13. Section 50.49, subsection 4, Code 2025, is amended  
7 by striking the subsection.

8 Sec. 14. Section 50.50, Code 2025, is amended to read as  
9 follows:

10 **50.50 Administrative ~~recounts~~ audits.**

11 1. The commissioner who was responsible for conducting an  
12 election may request an administrative ~~recount~~ audit when the  
13 commissioner is informed or suspects that voting equipment used  
14 in the election malfunctioned or that programming errors may  
15 have affected the outcome of the election, or if the precinct  
16 election officials report counting errors to the commissioner  
17 after the conclusion of the canvass of votes in the precinct.  
18 An administrative ~~recount~~ audit shall be conducted by the board  
19 of the special precinct established by [section 53.23](#). ~~Bond~~  
20 ~~shall not be required for an administrative recount.~~ The  
21 state commissioner may adopt rules for administrative ~~recounts~~  
22 audits.

23 2. ~~If the recount board finds that there is an error~~  
24 ~~in the programming of any voting equipment which may have~~  
25 ~~affected the outcome of the election for any office or public~~  
26 ~~measure on the ballot, the recount board shall describe the~~  
27 ~~errors in its report to the commissioner. The commissioner~~  
28 ~~shall notify the board of supervisors. The supervisors shall~~  
29 ~~determine whether to order an administrative recount for any~~  
30 ~~or all of the offices and public measures on the ballot. Each~~  
31 political party, as defined in section 43.2, may appoint up  
32 to five observers to witness an audit conducted pursuant to  
33 this section. The observers shall be appointed by the county  
34 chairperson or, if the county chairperson fails to make an  
35 appointment, by the state chairperson. However, if either or

1 both political parties fail to appoint an observer, the board  
2 may continue with the proceedings.

3 Sec. 15. Section 57.7, Code 2025, is amended to read as  
4 follows:

5 **57.7 Contest court for contest of public measure — appeal.**

6 The court for the trial of a contested election on a  
7 public measure shall consist of ~~one person designated by~~  
8 ~~the petitioners who are contesting the election, who shall~~  
9 ~~be designated in writing by the petitioners at the time~~  
10 ~~the contest is filed, one person designated by the county~~  
11 ~~commissioner of elections to represent the interests adverse~~  
12 ~~to those of the petitioners, and a third person who shall be~~  
13 ~~chosen jointly by the designees of the petitioners and of the~~  
14 ~~commissioner. If the persons selected by the petitioners and~~  
15 ~~the county commissioner of elections cannot agree on a third~~  
16 ~~person, the chief judge of the judicial district in which the~~  
17 ~~contest is filed shall appoint a third person to serve five~~  
18 ~~district court judges, appointed by the chief justice of the~~  
19 ~~supreme court by January 30 of each odd-numbered year. The~~  
20 ~~decision of the contest court may be appealed to the supreme~~  
21 ~~court.~~

22 Sec. 16. Section 58.7, Code 2025, is amended to read as  
23 follows:

24 **58.7 Judgment.**

25 The judgment of the committee pronounced in the final  
26 decision on the election ~~shall be conclusive~~ may be appealed to  
27 the supreme court.

28 Sec. 17. Section 60.1, Code 2025, is amended to read as  
29 follows:

30 **60.1 Court of contest.**

31 The court for the trial of contested elections for  
32 presidential electors or for the office of senator or  
33 representative in Congress shall consist of ~~the chief justice~~  
34 ~~of the supreme court, who shall be presiding judge of the~~  
35 ~~court, and four five judges of the district court to be~~

1 selected by the chief justice of the supreme court by January  
2 30 of each odd-numbered year, two three of whom, ~~with the chief~~  
3 ~~justice,~~ shall constitute a quorum for the transaction of the  
4 business of the court. ~~If the chief justice should for any~~  
5 ~~cause be unable to attend at the trial, the judge longest on~~  
6 ~~the supreme court bench shall preside in place of the chief~~  
7 ~~justice; and any question arising as to the membership of the~~  
8 ~~court shall be determined by the members of the court not~~  
9 ~~interested in the question~~ The district court judge longest  
10 serving shall be the presiding judge of the court.

11 Sec. 18. Section 60.2, Code 2025, is amended to read as  
12 follows:

13 **60.2 Clerk.**

14 The ~~secretary of state~~ clerk of the supreme court shall be  
15 the clerk of the court, ~~or, in the secretary of state's absence~~  
16 ~~or inability to act, the clerk of the supreme court.~~

17 Sec. 19. Section 60.6, Code 2025, is amended to read as  
18 follows:

19 **60.6 Judgment — appeal.**

20 The judgment of the court shall determine which of the  
21 parties to the action is entitled to hold the office and shall  
22 be authenticated by the presiding judge and clerk of the court  
23 and filed with the secretary of state; and the judgment so  
24 rendered ~~shall constitute a final determination of the title~~  
25 ~~to the office~~ may be appealed to the supreme court, and a  
26 certificate of appointment shall be issued to the successful  
27 party.

28 Sec. 20. Section 61.1, Code 2025, is amended to read as  
29 follows:

30 **61.1 Contest court.**

31 The court for the trial of contested state offices, except  
32 that of governor and lieutenant governor, shall consist of  
33 ~~three~~ five district judges, not interested, who shall be  
34 selected by the chief justice of the supreme court.

35 Sec. 21. Section 61.2, Code 2025, is amended to read as

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1 follows:

2     **61.2 Clerk.**

3     ~~The secretary of state clerk of the supreme court shall be~~  
4 ~~the clerk of this court; but if the person holding that office~~  
5 ~~is a party to the contest, the clerk of the supreme court, or,~~  
6 ~~in case of that person's absence or inability, the auditor of~~  
7 ~~state shall be clerk.~~

8     Sec. 22. Section 61.4, Code 2025, is amended to read as  
9 follows:

10    **61.4 Selection of court.**

11    ~~Upon the filing of such statement, the~~ The chief justice of  
12 the supreme court shall select the membership of the court ~~to~~  
13 ~~try such contest by January 30 of each odd-numbered year, and~~  
14 immediately certify such selection to the clerk of the supreme  
15 court. Vacancies shall also be filled by the chief justice.

16    Sec. 23. Section 61.12, Code 2025, is amended to read as  
17 follows:

18    **61.12 Judgment filed — execution.**

19    A transcript of the judgment rendered by such court, filed  
20 in the office of the clerk of the supreme court, shall have the  
21 force and effect of a judgment of the supreme court, except  
22 that the judgment of the court may be appealed to the supreme  
23 court, and execution may issue therefrom in the first instance  
24 against the party's property generally.

25    Sec. 24. Section 62.1A, Code 2025, is amended to read as  
26 follows:

27    **62.1A Contest court established.**

28    The court for the trial of contested county elections shall  
29 consist of ~~one member named by the contestant and one member~~  
30 ~~named by the incumbent. If the incumbent fails to name a~~  
31 ~~member, the chief judge of the judicial district shall be~~  
32 ~~notified of the failure to appoint. The chief judge shall~~  
33 ~~designate the second member within one week after the chief~~  
34 ~~judge is notified. These two members shall meet within three~~  
35 ~~days and select a third member to serve as the presiding member~~

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1 ~~of the court. If they cannot agree on the third member of the~~  
2 ~~court within three days after their initial meeting, the chief~~  
3 ~~judge of the judicial district shall be notified of the failure~~  
4 ~~to agree. The chief judge shall designate the presiding member~~  
5 ~~within one week after the chief judge is notified~~ a district  
6 court judge from the judicial district where the county  
7 election is being contested, appointed by the chief justice of  
8 the supreme court by January 30 of each odd-numbered year.

9     Sec. 25. Section 62.20, Code 2025, is amended to read as  
10 follows:

11     **62.20 Appeal.**

12     The party against whom judgment is rendered may appeal  
13 within twenty days to the ~~district~~ supreme court, but, if  
14 the party be in possession of the office, such appeal will  
15 not supersede the execution of the judgment of the court as  
16 provided in section 62.19, unless the party gives a bond, with  
17 security to be approved by the ~~district judge~~ supreme court in  
18 a sum to be fixed by the ~~judge~~ supreme court, and which shall be  
19 at least double the probable compensation of such officer for  
20 six months, which bond shall be conditioned that the party will  
21 prosecute the appeal without delay, and that, if the judgment  
22 appealed from be affirmed, the party will pay over to the  
23 successful party all compensation received by the party while  
24 in possession of said office after the judgment appealed from  
25 was rendered. The court shall hear the appeal in equity and  
26 determine anew all questions arising in the case.

27     Sec. 26. Section 62.21, Code 2025, is amended to read as  
28 follows:

29     **62.21 Judgment.**

30     If, upon appeal, the judgment is affirmed, the ~~district~~  
31 supreme court may render judgment upon the bond for the amount  
32 of damages, against the appellant and the sureties thereon.

33     Sec. 27. Section 260C.15, subsection 5, Code 2025, is  
34 amended to read as follows:

35     5. The votes cast in the election shall be canvassed and

1 abstracts of the votes cast shall be certified as required by  
2 section 277.20. In each county whose commissioner of elections  
3 is the controlling commissioner for a merged area under section  
4 47.2, the county board of supervisors shall convene on the  
5 second ~~Monday~~ or Tuesday after the day of the election to  
6 canvass the abstracts of votes cast from each county in the  
7 merged area, and declare the results of the voting. The  
8 commissioner shall at once issue certificates of election to  
9 each person declared elected, and shall certify to the merged  
10 area board in substantially the manner prescribed by section  
11 50.27 the result of the voting on any public question submitted  
12 to the voters of the merged area. Members elected to the board  
13 of directors of a merged area shall qualify by taking the oath  
14 of office prescribed in [section 277.28.](#)>

15 2. Title page, by striking lines 1 and 2 and inserting <An  
16 Act relating to the recounting and contesting of elections, and  
17 providing penalties.>

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KEN ROZENBOOM